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Case Number: 25STCV31940 Hearing Date: September 17, 2026 Dept: 514

Gibbs

v. United Parcel Service, Inc.

25STCV31940

Demurrer of Defendant Marquez Mitchell

Tentative

Ruling

The demurrer is overruled.

Background

This case arises out of an employment relationship.

On November 3, 2025, Brittney Gibbs ("Plaintiff") filed the complaint in this action.

On January 20, 2026, Plaintiff filed a First Amended Complaint (the "FAC") against United Parcel Service, Inc. ("UPS"), Marquez Mitchell, Jim Perez, and Does 1 through 25, asserting causes of action for (1) gender/pregnancy discrimination in violation of the California Fair Employment and Housing Act (the "FEHA"); (2) retaliation in violation of the FEHA; (3) failure to engage in the interactive process in violation of the FEHA; (4) failure to accommodate in violation of the FEHA; (5) failure to prevent discrimination, harassment and retaliation in violation of the FEHA;

(6) retaliation in violation of Labor Code section 1102.5; (7) harassment in violation of the FEHA; (8) failure to produce personnel file under Labor Code section 1198.5; and (9) intentional infliction of emotional distress.

On May 12, 2026, the Court sustained UPS's demurrer to the Eighth and Ninth Causes of Action.

On May 26, 2026, UPS filed an answer.

On June 3, 2026, the Court, at the request of Plaintiff, dismissed Defendant Jim Perez.

On June 4, 2026, Marquez Mitchell ("Defendant" or "Mitchell") filed this demurrer to Plaintiff's FAC. Plaintiff filed an opposition on August 4, and Defendant filed a reply on August 11.

On August 18, 2026, the Court continued the hearing and ordered the parties to meet and confer as required by statute.

On September 9, 2026, Defendant filed the supplemental declaration of counsel.

Trial is set for July 5, 2028.

Legal Standard

Code of Civil Procedure section 430.10 provides:

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

...

(e) The pleading does not state facts sufficient to constitute a cause of action. ..."

A general demurrer under Code of Civil Procedure section 430.10, subdivision (e), tests whether the complaint states a

cause of action. (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388; Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2025], ¶ 7:40.)

“We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. We also consider matters which may be judicially noticed.” (Centinela Freeman Emergency Medical Associates v. Health Net of California (2016) 1 Cal.5th 994, 1010; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; accord Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924; Marina Pacific Hotel and Suites v. Fireman's Fund Insurance Company (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081; Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at p. 104.) Even “improbable” facts alleged in the pleading must be accepted as true. (Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at pp. 104-105.)

Courts must “liberally construe the pleading” and “give the complaint a reasonable interpretation, reading it as a whole and its parts in context.” (Id. at p. 105.)

A complaint must contain a “statement of facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1); see also C.A. v. William S. Hart High School Dist. (2012) 53 Cal.4th 861, 872 [“the complaint need only allege facts sufficient to state a cause of action”].) Ordinarily, a complaint “is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) Ultimate facts are those upon which “the right to recover depends” and are “essential” to the cause of action. (Estes v. Eaton Corp. (2020) 51 Cal.App.5th 636, 643 fn. 2; see also 1 Weil & Brown, supra, ¶ 6:124.)

A plaintiff is required to plead only “the essential facts of [its] case” that are sufficient “to acquaint a defendant with the nature, source and extent of [the] cause of action.” (Doe, supra, 42 Cal.4th at p. 550.) Mere boilerplate or pleading of

legal conclusions is not sufficient. (Id. at p. 551 fn.

5.) But a plaintiff need not allege “each evidentiary fact that might eventually form part of plaintiff’s proof” at trial. (C.A., supra, 53 Cal.4th at p. 872.)

A demurrer can be sustained only when it disposes of an entire cause of action. (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (Centinela Freeman, supra, 1 Cal.5th at p. 1010; Blank, supra, 39 Cal.3d at p. 318; Shaeffer v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Meet
and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) The requirement is met. (Supp. Prine Decl., ¶ 13.)

Discussion

Defendant
Mitchell demurs to Plaintiff’s Seventh Cause of Action, for harassment in violation of the FEHA.

Under
Government Code section 12940, subdivision (j)(1), it is an unlawful employment practice for an employer “to harass an employee” based on (among other things) a person’s sex, gender, age, or physical disability. An employee of the employer “is personally liable for any harassment prohibited by this section that is perpetrated by [that] employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.” (Gov’t Code, §

12940, subd. (j)(3).)

The elements of a prima facie cause of action under Government Code section 12940, subdivision (j) in this context are: (1) that the plaintiff and individual defendant were employed by the entity defendant; (2) that the individual defendant participated in, assisted in, or encouraged harassment of the plaintiff; (3) that the harassment occurred because of plaintiff's sex, gender, age, disability, or other protected status; (4) that the harassing conduct was severe or pervasive; (5) that a reasonable person would have considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive; (6) that the plaintiff considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive; (7) that a supervisor engaged in the conduct or knew or should have known of the conduct and failed to take immediate and appropriate corrective action; and (8) that plaintiff suffered harm as a result of the harassment. (Reid v. Google, Inc. (2010) 50 Cal.4th 512, 540-541, 545; Martin v. Board of Trustees of California State Univ. (2023) 97 Cal.App.5th 149, 170; Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581; Serri v. Santa Clara Univ. (2014) 226 Cal.App.4th 830, 869; Lewis v. City of Benicia (2014) 224 Cal.App.4th 1519, 1524; see also CACI Nos. 252AA, 2523.)

In support of his demurrer, Defendant Mitchell makes essentially three arguments: (1) that Plaintiff's allegations "primarily" concern personnel management (such as job assignments) and the remaining allegations against him do not constitute actionable harassment (Mem., at pp. 5-6); (2) that Mitchell's comments and actions did not communicate a hostile message regarding pregnancy (Mem., at pp. 6-7); and (3) the conduct of Mitchell is not sufficiently severe or pervasive to be actionable (Mem., at p. 7.)

In the FAC, Plaintiff alleges that when she first provided her supervisor (Zachary Brown) with a doctor's note confirming her pregnancy and a weight restriction on June 21, 2023, she was sent home without pay and told that her work would be paused until Defendant Mitchell returned on June 27. (FAC, ¶¶ 12-13.) Upon Mitchell's return, Mitchell was asked (with Plaintiff present) whether he approved of Plaintiff's accommodation request; Mitchell ignored Plaintiff, denied the request, and walked away. (FAC, ¶ 15.) This, Plaintiff alleges, "communicated an offensive and demeaning message that [Plaintiff] was unwelcome because of her pregnancy-related restrictions and contributed to a hostile, intimidating, and

abusive work environment.” (Ibid.)

In the month of July and into

August 2023, Plaintiff reported to work each day to see whether she had been scheduled a work shift. “On each occasion,” Plaintiff alleges, “Mitchell told her to go home and did so in a dismissive manner, often appearing to smirk while speaking to her and in front of others.” (FAC, ¶ 17.) Mitchell refused to assign Plaintiff work, “referring to her pregnancy and calling her a ‘liability.’” (FAC, ¶ 23.)

On or around July 10, Mitchell told Plaintiff that she could apply for light duty but used a tone that was “irritated and sarcastic, making it [clear] he would not approve the request.” (Ibid.) Mitchell’s “tone and words conveyed hostility toward [Plaintiff] because of her pregnancy-related restrictions.” (Ibid.)

Following a grievance meeting on

August 16, 2023, Mitchell “continued to retaliate against [Plaintiff] due to her condition and for making protected complaints.” (FAC, ¶ 21.)

On August 23, Mitchell demoted Plaintiff and assigned her to a physically strenuous position; Mitchell “appeared irritated” and when Plaintiff objected, Mitchell “walked away during the conversation.” (Ibid.) Shortly after, at a meeting with Mitchell, Plaintiff, and a union representative, Mitchell raised his voice, asked “how am I picking on you?,” and again “appeared frustrated and walked away.” (Ibid.) Plaintiff alleges that the “reassignment, demeaning comments and repeated walk-offs, conveyed a hostile, biased message toward [Plaintiff’s] pregnancy.” (Ibid.)

Plaintiff remained off work until

August 28, 2023. (FAC, ¶ 22.) On that date, Mitchell initially assigned Plaintiff to work as a package driver; when Plaintiff expressed concern that some of the packages were near the upper limit of her pregnancy-related restriction, Mitchell “responded condescendingly,” stated that “he didn’t see a problem,” and again walked away. (Ibid.) Mitchell reassigned her to a UPS store, where there were many packages exceeding her pregnancy-related restriction; when Plaintiff called her supervisor to express her concern, Plaintiff overheard Mitchell saying, “Oh my god” in what Plaintiff alleges was a “frustrated tone.” (Ibid.)

This is not, as Defendant contends, a set of allegations that primarily relate to work assignments.

Plaintiff alleges that over a period of approximately two months, Defendant Mitchell repeatedly made remarks and engaged in conduct that harassed Plaintiff because of her pregnancy and her pregnancy-related work

restrictions. Moreover, even official employment actions may provide an “evidentiary basis of the harassment cause of action, because the supervisor used those official actions as his means of conveying his offensive message.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 708.) “[I]n some cases, the hostile message that constitutes the harassment is conveyed through official employment actions.” (Ibid; see also Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, 932.) “[S]ome official employment actions done in furtherance of a supervisor’s managerial role can also have a secondary effect of communicating a hostile message.” (Roby, supra, 47 Cal.4th at p. 709.) In these situations, the plaintiff may plead the cause of action as harassment (or as discrimination, or both). (Pollock, supra, 11 Cal.5th at p. 932.)

Whether the conduct complained of is sufficiently pervasive must be determined “from the totality of the circumstances.” (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 609.) The plaintiff must plead, and ultimately prove, that the defendant’s conduct would have interfered with a reasonable employee’s work performance and would have seriously affected the psychological well-being of a reasonable employee and that she was actually offended. (Id. at pp. 609-610.)

The Court has considered the allegations in the FAC and the arguments presented by both sides. Taking the allegations in the FAC as true, as the Court must on demurrer, and drawing all reasonable inferences in favor of the pleading, the Court determines that Plaintiff has sufficiently alleged each of the elements of her cause of action for unlawful harassment under the FEHA by Defendant Mitchell, including that she was subjected to harassing conduct that was severe or pervasive. Some of the actions of Defendant Mitchell may have been official employment actions, but they are alleged to have had the secondary effect of communicating a hostile message: that Plaintiff did not belong in the workplace because of protected characteristics. The conduct was repeated over an extended period of time. The pleading is sufficient.

The demurrer to the Seventh Cause of Action is overruled.

Conclusion

The
Court OVERRULES the demurrer filed by Defendant Marquez

Mitchell.

Defendant Mitchell is to file an answer to the FAC by October 8, 2026.

Moving party is ordered to give notice.